

Before the
FEDERAL MARITIME COMMISSION

Docket No. 25-04

CHINA UNITED LINES, LTD.

v.

AMAZON.COM SERVICES, LLC,

AMAZON LOGISTICS, INC. AND

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

JOINT NOTIFICATION REGARDING NON-DISPOSITIVE MOTIONS

Complainant China United Lines, Ltd. (“Complainant”), and Respondents Amazon.com Services, LLC (“Amazon Services”), Amazon Logistics, Inc. (“Amazon Logistics”), and Beijing Century Joyo Courier Service Co., Ltd (“Beijing Century”) (collectively “Respondents”), by and through their undersigned counsel, hereby submit this Notification in response to the direction in the Presiding Officer’s January 16, 2026 Order that the Parties notify her if they have “resolved any of the issues raised in [the two pending] non-dispositive motions:” (1) Complainant’s December 10, 2025 Motion for Order Instructing Respondents to Remove “Attorneys’ Eyes Only” Designations from certain produced documents, and (2) Complainant’s January 11, 2025 Motion for Protective Order. *Third Revised Scheduling Order*, Docket Entry No. 52. The parties have been unable to resolve their disputes. Both Motions are fully briefed.

Exhibit 1 to Respondents' Opposition to the Protective Order motion, filed January 20, 2026, sets out the parties' communications as to resolution of that Motion. Attached to this Notification are the parties' additional communications as to resolution of the Attorney's Eyes Only Motion following the *Third Revised Scheduling Order*. Those attached communications do resolve one issue with respect to the meet and confer issue raised in the Opposition to that Motion; it is now clear that the parties are at an impasse and that a ruling of the Presiding Officer is necessary.

The parties appreciate the Presiding Officer's consideration.

Respectfully submitted,

Dated January 23, 2026

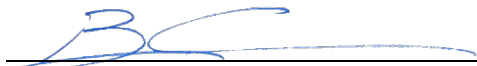
K&L GATES LLP

/s/ John Longstreth

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CERTIFICATE OF SERVICE

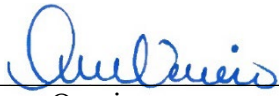
I HEREBY CERTIFY that on this 23rd day of January 2026, a true and correct copy of the foregoing **Joint Status Report Regarding Non-Dispositive Motions** was served via electronic mail on:

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Counsel for China United Lines, Ltd.



Ileen Osorio

EXHIBIT

From: [Bryce M. Cullinane](#)
To: [Longstreth, John](#)
Cc: [Scanlon, Michael F.](#); [Goff, Christi K.](#)
Subject: Re: AEO motion
Date: Wednesday, January 21, 2026 11:53:34 PM

This Message Is From an External Sender

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John - Lift the AEO designations, it's not complicated. Otherwise, the motion is fully briefed.

Bryce

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Bryce M. Cullinane

Attorney at Law



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Bio: Bryce M. Cullinane
Website: www.tocounsel.com

Please consider the environment before printing this e-mail.

From: Longstreth, John <john.longstreth@klgates.com>
Sent: Wednesday, January 21, 2026 7:04 PM
To: Bryce M. Cullinane <bcullinane@tocounsel.com>
Cc: Scanlon, Michael F. <michael.scanlon@klgates.com>; Goff, Christi K. <Christi.Goff@klgates.com>
Subject: RE: AEO motion

[EXTERNAL: This message originated outside your organization.]

Bryce,

Thank you for your stated willingness to consider a proposal to resolve your AEO

designation motion. We are also willing to consider any proposal you might have, either in response to this proposal or otherwise.

As we stated in our response to your motion, we remain willing to discuss with you lifting any specific AEO designations that you reasonably need to share with the business personnel at China United. We note that the material can already be shared with China United's inside counsel, who appears closely involved in this matter having, for example, been in the virtual room for China United's corporate deposition.

We understand that you have taken the position that you do not have to assert or show any such need, but we have cited and relied on precedent we believe is to the contrary, and thus believe it is appropriate to ask, in attempting to resolve the matter, what you really need and why. By example, China United's corporate representative confirmed that your reparations claim at the FMC is based on rerating cargo to China United's tariff rates, not on nonpublic contract rates of non-party competitors, and that the claim will be developed by your expert witness. The expert has access to the AEO information under the terms of the protective order. Similarly, when AEO information came up in that deposition and Mr. Chen was excused for some periods, there was no indication that his absence interfered with your ability to conduct the deposition. Again, none of this is intended to reargue the parties' positions, but to suggest that a path appears open to discuss the issue with more specificity in order to explore the potential for a resolution.

If you – and your client – believe this would be fruitful avenue to pursue, please let us know.

Best regards,

John

From: Longstreth, John

Sent: Tuesday, January 20, 2026 9:41 PM

To: 'Bryce M. Cullinane' <bcullinane@tocounsel.com>

Cc: Scanlon, Michael F. <michael.scanlon@klgates.com>; Goff, Christi K. <Christi.Goff@klgates.com>

Subject: RE: AEO motion

Yes it is after business hours here. We'll get you something tomorrow.

From: Bryce M. Cullinane <bcullinane@tocounsel.com>

Sent: Tuesday, January 20, 2026 7:14 PM

To: Longstreth, John <john.longstreth@klgates.com>

Cc: Scanlon, Michael F. <michael.scanlon@klgates.com>; Goff, Christi K. <Christi.Goff@klgates.com>

Subject: Re: AEO motion

Thank you, John. I just called your cell, but you did not answer. We are happy to

consider any reasonable proposal that your client would like to make.

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Bryce M. Cullinane

Attorney at Law



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Please consider the environment before printing this e-mail.

From: Longstreth, John <john.longstreth@klgates.com>

Sent: Tuesday, January 20, 2026 3:26:25 PM

To: Bryce M. Cullinane <bcullinane@tocounsel.com>

Cc: Scanlon, Michael F. <michael.scanlon@klgates.com>; Goff, Christi K. <Christi.Goff@klgates.com>

Subject: AEO motion

[EXTERNAL: This message originated outside your organization.]

Bryce, you had asked for a proposal on the AEO motion to take to your client, but in light of what transpired with the Protective Order motion I'm wondering if that would be fruitful. Do you think there's a likelihood that your client would entertain a compromise resolution, or is it clear they are anxious to keep the matter in front of the judge? I'm mindful that we owe Chief Judge Wirth a report back by this Friday.

Thanks,

John



John Longstreth

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